

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Sarah J. Carrillo

Department 2	August 28, 2026	8:30 am	DA Case #	Date Filed
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1	CV66389	David Perry Ashton et al vs. American Family Connect Ins Co et al		08/27/2024
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David Perry Ashton

Attorney: Evangeline Grossman

Mary Jane Ashton

Attorney: Evangeline Grossman

American Family Connect Property an Casualty Insurance Company

Attorney: Joshua Kastan

Ameriprise Auto & Home Insurance

IDS Property Casualty Insurance Company

Alacrity Solutions Group

Attorney: Adriana Valdez

Alacrity Solutions Group

Attorney: Carla Braunstein

Shaun Piazza d/b/a Eagle Construction

Attorney: Anahita Yamouti

Shaun Piazza d/b/a Eagle Construction

Attorney: Shivani Bommakanty

Tony Martin d/b/a Eagle Construction

Attorney: Anahita Yamouti

Tony Martin d/b/a Eagle Construction

Attorney: Shivani Bommakanty

OSC Hearing - Sanctions

Attorney Evangeline Grossman, Attorney Joshua Kastan, and Attorney Adriana Valdez

Case Management Conference

Federal Court update

08/27/2024 Complaint

File Tracking

08/12/2025 High Density

This is an insurance bad faith case. Following a partial settlement with certain local contractor defendants, the remaining defendants had the action removed to federal court. The state case was stayed, and an annual review hearing was set.

On 06/26/2026, Judge Beyersdorf conducted that review hearing. No parties appeared, which caused the Court to issue orders to show cause re: sanctions against the parties/lawyers. As correctly noted in a filing by all parties, the Court had no authority to issue orders to show cause because with removal "the state court shall proceed no further unless and until the case is remanded." 28 U.S.C. §1446(d); in accord, *Spanair S.A. v. McDonnell Douglas Corp.* (2009) 172 Cal.App.4th 348. Although the attorneys agreed to a review hearing in a year and then failed to (1) file a dismissal in this Court once the federal action was fully resolved, or (2) appear at the review hearing to keep this Court informed, the OSC issued on 06/26/2026 must be vacated. Moreover, this state action should be dismissed with prejudice.